

M/s S.R. Preservation Pvt. Ltd. v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 3 October 2016 · Writ - C No. 47031 of 2016 · **Writ disposed; EE to decide Clause 6.5 application; demand stayed.**

HEADNOTE

After a Clause 6.5 bill-correction exercise, a later demand alleging unadjusted cash deposits was not decided on merits. The Division Bench disposed of the writ by directing the Executive Engineer to pass a reasoned speaking order on the pending application, stating the amount payable or refundable, and kept the 16.09.2016 demand in abeyance until that order.

FACTUAL SUMMARY

The petitioner had been remitted to Clause 6.5 of the U.P. Electricity Supply Code, 2005 in Writ-C No. 1279 of 2016. A 23.02.2016 bill showed an excess deposit of Rs 2,69,216.50. After it sought a final bill and refund, the licensee demanded Rs 17,99,548 on 16.09.2016, adjusting only Rs 7,65,000 and omitting alleged cash deposits of Rs 2 lakh and Rs 12 lakh. An interim Rs 4 lakh deposit was paid. Licensee's counsel said a 27.09.2016 representation and those cash deposits would be examined.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill correction under clause 6.5

HOLDING

Where a consumer already remitted to Clause 6.5 challenges a subsequent demand alleging non-adjustment of cash deposits, the writ court may dispose of the petition by directing the Executive Engineer to pass a reasoned speaking order on the pending application within a fixed time, intimating the amount payable or refundable, and may keep the demand in abeyance until that order. ¶ 2

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

The Court left the pending Clause 6.5 objection, including alleged unadjusted cash deposits, to a time-bound speaking order of the Executive Engineer and kept the subsequent demand in abeyance. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED CASH DEPOSITS WERE MADE AND MUST BE ADJUSTED, AND THE AMOUNT PAYABLE OR REFUNDABLE ON THE 16.09.2016 DEMAND

Left to the Executive Engineer on the pending Clause 6.5 application. ¶ 2